

IN THE PROCUREMENT REVIEW COMMITTEE
BALUCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY

PRC Appeal No. 38/2025

M/S Hazrat Ali Kakar & Company.
Government Contractor & General Store Suppliers,
Through its Owner Hazrat Ali,
Situated at House No. 32 Gulshan Jinnah Quetta Extension Samungli Road Quetta.

....Appellant

Versus

1. The Secretary Public Health Engineering Department Civil Secretariat Zarghoon Road Quetta.
2. The Deputy Commissioner / Chairman Grievance Redressal Committee Pishin.
3. The Executive Engineer, Public Health Engineering Department, Pishin.
4. Shams Ud Din Babar & Brothers
Notices served through Executive Engineer Pishin PHE Department

....Respondents

Quorum

- | | |
|----------------------------|----------------------|
| 1. Habib Ur Rehman Jamot | MD/Chairman PRC |
| 2. Iftikhar Ahmed Sanjrani | Co-opted Member |
| 3. Engr. Junaid Shah | Member PRC |
| 4. Engr. Iftikhar Mir | Technical Member PRC |
| 5. Abdul Wahab Bulledi | Private Member PRC. |

APPEAL UNDER RULE-56-A OF THE BPPRA RULES AGAINST TSE
No.252609860403

For the Appellant:

Mr. Hazrat Ali, in person.

For the Respondents No. 1-4.

Mr. Nadeem Faraz Panezai, Executive Engineer.

Date of Final Hearing: 26-11-2025

Decided On: 28-11-2025

DECISION

The Appellant has filed appeal in hand with averment that he is a Government Contractor by profession and is running his company with the name and style of Hazrat

Ali Kakar & Company is registered with Pakistan Engineer Council (PEC) having PEC license C-4 Category and has successfully completed numbers of project / ventures of various department. The Appellant has further added that a tender Notice vide PRQ No. 1350/18-09-2025 was published in daily newspaper by the Respondent No. 3 wherein several works were mentioned and was uploaded on BPPRA website through TSE No. 252609860403 under which construction of "WSS BORE FOR GIRLS ELEMENTARY COLLEGE DISTRICT PISHIN" with the estimated cost of Rs.9,5480,00 /- was called and the date for opening of the tender was fixed on 03-10-2025. The Appellant further added that as per Tender Notice the appellant has adopted the procedure for submission of tender fee along with call deposit for the said work which was based on "single stage single envelope" procedure. The Appellant in addition to the above averment has alleged that, the tender was not opened on 03-10-2025 and was opened on 17-10-2025 and despite that the Appellant firm qualified for the applied work. In the bid evaluation report and eligibility assessment the Appellant was declared eligible but the work mentioned in above TSE was approved in favor of the respondent No. 4 who has quoted the rates 0.32% below while Appellant had quoted approximately rates below 10%; the Procuring Agency had issued work order to the respondent No. 4 in violation of BPP Rules and Appellant invoked the jurisdiction of Grievance Redressal Committee but without any fruitful result.

2. Notices were issued to the Respondents who have appeared in person and have filed their para-wise comments wherein the Respondents have denied the allegations of Appellant regarding opening of bid on 17-10-2025 and added that bid was opened on 03-10-2025 as mentioned in tender notice, however, the evaluation report was uploaded on 17-10-2025. He further added that almost four bidders were declared qualified in the overall competition the bidding process was conducted in a fair and transparent manner and the Appellant had only submitted his technical bid but without any financial bid. The Official Respondents disclosed that 70 to 80% work has been completed by the Private Respondent after issuance of work order on 21-10-2025.

3. A query was put to the Respondent No.3 regarding CDR (Call Deposit Receipt), whether the Appellant submitted his CDR with the Procuring Agency or otherwise. The reply of respondent No. 3 was affirmative.

4. We have heard the Appellant as well as representatives of the Procuring Agency. The complaint so filed by the Appellant before the Deputy Commissioner Pishin / Chairman GRC does not disclose the exact grievance but quoted the violation of relevant Rule only but before this Committee has raised plea that he has submitted financial bid but deliberately was knocked out by the Procuring Agency due to non-submission of the same. It is important to mention that since the bidder submitted his technical bid when he was well aware that the bid is single stage single envelope, in such situation it is impossible that the financial bid was not submitted by the bidder while he had already submitted the CDR and Green Challan of tender fee. Moreover it was highly

unwarranted on the part of Procuring Agency to seek technical and financial bids separately, informally, in Single Stage- Single Envelop procurement method. No clause to such effect was mentioned in NIT. During the course of arguments, the representatives of the Procuring Agency frankly stated that the financial bid of the Appellant might have been missed by the officials of the Respondent because of the work load and crowd of the bidders. The above statement of the Official Respondents shows that the procurement process was tainted with bias, arbitrariness or discrimination.

5. Keeping in view of above, the Appeal in hand is allowed in favor of the Appellant and the tender process in above TSE is declared as mis-procurement.

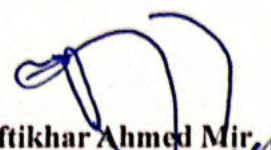

Habib Ur Rehman Jagot
Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA) 28/11/2025


28/11/2025
Iftikhar Ahmed Sanjrani

Member
Procurement Review Committee
BPPRA


Engr. Junaid Shah

Member
Procurement Review Committee
BPPRA


26/01/2025
Eng Iftikhar Ahmed Mir

Member
Procurement Review Committee
BPPRA


Abdul Wahab Bulleli

Member
Procurement Review Committee
BPPRA